

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant
Shawn Alan Manuel

Case Number: 25-01269

vs.

Respondent
OSAIC Wealth, Inc.

Hearing Site: Kansas City, Missouri

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Shawn Alan Manuel (“Claimant”): David B. Cosgrove, Esq. and Charles M. Simpson, Esq., Cosgrove Simpson, LLC, St. Louis, Missouri.

For Respondent OSAIC Wealth, Inc. (“Respondent”): Justin Sacca, Esq., Osaic Wealth, Inc., Scottsdale, Arizona.

CASE INFORMATION

Statement of Claim filed on or about: June 18, 2025.

Claimant signed the Submission Agreement: June 13, 2025.

Statement of Answer filed on or about: July 25, 2025.

Respondent signed the Submission Agreement: July 25, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent supported Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 5874784) requested expungement of all references to Occurrence Number 2357444 from the CRD registration records and any and all other relief that the Panel deems just and equitable.

In the Statement of Answer, Respondent did not request any relief.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On August 7, 2025, Claimant advised that the customer in Occurrence Number 2357444 ("Customer") was served with a copy of the Statement of Claim and Statement of Answer within 10 days of their filings and provided proofs of service.

The Panel conducted a recorded hearing by videoconference on November 19, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent appeared at the expungement hearing and, as stated in the Statement of Answer, supported the request for expungement.

The Customer did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel noted that the dispute related to Occurrence Number 2357444 was not settled. Therefore, there was no settlement documentation to review.

The Panel relied upon the following documentary or other evidence: Claimant's Exhibits A through U, all of which were admitted into evidence, and Claimant's testimony.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2357444 from registration records maintained by the CRD for Claimant Shawn Alan Manuel (CRD Number 5874784) with the understanding that, pursuant to Rule 2080, Claimant Shawn Alan Manuel must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative findings of fact:

The claim, allegation, or information is factually impossible or clearly erroneous; and

The claim, allegation, or information is false.

The Panel has made the above findings based on the following reasons:

The Customer was a long-term client of Claimant. The Customer filed a complaint alleging that Claimant had forged her signature on a "Confidential Health Information Form" with a signature date of July 4, 2024. The Customer's complaint stated that she knew her signature was forged because she did not meet with Claimant on July 4, 2024.

The evidence, both testimonial and documentary, proved that on June 28, 2024, a "Confidential Health Information Form" was mailed by Claimant's office to the Customer and that the executed form was returned via U.S. mail from the Customer to Claimant's company, Strategic Wealth, Inc. on July 5, 2024, in a prepaid envelope that she had been provided by Claimant when the form was mailed to her.

Claimant testified that he spoke to the Customer by telephone on October 1, 2024, and during this conversation, the Customer acknowledged that she realized the form had been sent to her and that she had signed and returned it, as Claimant's records showed and her allegation of forgery was made in error. His testimony was backed up by an email sent by Claimant to the Customer in which he wrote: "I was relieved to hear you say that you realized that the form was mailed to you and signed and returned as our records show."

Of note, is the evidence showed that the Missouri Department of Commerce and Insurance, who investigated the case, found that no insurance laws or regulations had been violated and closed the case and that Respondent's Statement of Answer to the Statement of Claim supported the expungement.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$	2,600.00
Member Process Fee	= \$	5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$	1,725.00
Pre-Hearing Conference: September 22, 2025 1 session		
One (1) hearing session on expungement request @ \$1,725.00/session	= \$	1,725.00
Hearing: November 19, 2025 1 session		
Total Hearing Session Fees	= \$	3,450.00

The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Fern M. Laethem	-	Public Arbitrator, Presiding Chairperson
Barry H. Barnett	-	Public Arbitrator
Vincent C. Pangia	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Fern M. Laethem

Fern M. Laethem
Public Arbitrator, Presiding Chairperson

11/21/2025

Signature Date

Barry H. Barnett

Barry H. Barnett
Public Arbitrator

11/21/2025

Signature Date

Vincent C. Pangia

Vincent C. Pangia
Public Arbitrator

11/24/2025

Signature Date

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November 24, 2025

Date of Service (For FINRA Dispute Resolution Services use only)